

SiyaBusa ERP

END USER LICENSE AGREEMENT

Legal Documents

Masaphokati Technologies (Pty) Ltd

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Department: Legal

Classification: Public

WE RULE. WE GOVERN. WE EMPOWER.

SOFTWARE LICENSE

End user license agreement for SiyaBusa ERP software.

End User License Agreement (EULA)

Effective Date: January 1, 2026

Version: 1.0

IMPORTANT - READ CAREFULLY

This End User License Agreement ("Agreement" or "EULA") is a legal agreement between you (either an individual or a single entity) and **Masaphokati Technologies (Pty) Ltd** ("Licensor", "we", "us") for the SiyaBusa ERP software service, which includes computer software, associated media, printed materials, and online or electronic documentation ("Software").

BY CLICKING "I ACCEPT", ACCESSING, OR USING THE SOFTWARE, YOU AGREE TO BE BOUND BY THE TERMS OF THIS AGREEMENT. IF YOU DO NOT AGREE TO THE TERMS OF THIS AGREEMENT, DO NOT ACCESS OR USE THE SOFTWARE.

1. Definitions

Term	Definition
Authorized User	An individual authorized by you to access and use the Software
Documentation	User guides, help files, and technical documentation
Software	The SiyaBusa ERP cloud-based software service
Subscription	Your license to use the Software for a defined period
Updates	Patches, fixes, updates, and new versions of the Software

2. Grant of License

2.1 License Grant

Subject to the terms of this Agreement, Licensors grants you a limited, non-exclusive, non-transferable, revocable license to:

- Access and use the Software during your Subscription period
- Allow Authorized Users to access the Software (up to your licensed limit)
- Use the Documentation for internal reference

2.2 License Restrictions

You may NOT:

Restriction	Description
Copy	Copy, reproduce, or duplicate the Software
Modify	Modify, adapt, translate, or create derivative works
Reverse Engineer	Decompile, disassemble, or reverse engineer the Software
Sublicense	Sublicense, rent, lease, or lend the Software
Transfer	Transfer, assign, or sell your license rights
Remove Notices	Remove or alter proprietary notices or labels
Circumvent	Bypass security features or usage restrictions
Compete	Use the Software to develop competing products

2.3 Scope of Use

This license permits use of the Software:

- For your internal business purposes only
 - In accordance with the Documentation
 - Within the scope of your Subscription plan
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3. Subscription and Fees

3.1 Subscription

- Access requires a valid, paid Subscription
- Subscriptions are for the term specified in your order
- Renewal is subject to payment of applicable fees

3.2 Fees

- You agree to pay all fees as specified in your order
 - Fees are non-refundable except as provided in this Agreement
 - Late payments may result in suspension of access
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4. Updates and Modifications

4.1 Updates

- Licensor may provide Updates to the Software
- Updates may be applied automatically
- Updates are subject to this Agreement

4.2 Modifications

- Licensor may modify the Software at any time
 - Material changes will be communicated in advance
 - Continued use constitutes acceptance of modifications
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5. Data

5.1 Your Data

- You retain ownership of data you input into the Software
- You grant Licensor a license to use your data to provide the Software
- Licensor will not share your data except as necessary for the Software

5.2 Data Protection

- Licensor will implement appropriate security measures
- Processing of personal data is governed by our Privacy Policy
- See our Data Processing Agreement for details

5.3 Data Portability

- You may export your data at any time during your Subscription
 - Upon termination, you may export data for 90 days
 - After 90 days, your data may be deleted
-

6. Intellectual Property

6.1 Ownership

The Software, including all intellectual property rights, is owned by Licensor. This Agreement does not transfer any ownership rights to you.

6.2 Trademarks

"SiyaBusa", "Masaphokati", and associated logos are trademarks of Licensor. You may not use these marks without permission.

6.3 Feedback

If you provide feedback about the Software, Licensor may use such feedback without obligation to you.

7. Third-Party Components

7.1 Third-Party Software

The Software may include third-party components subject to separate license terms. A list of such components and their licenses is available in the Documentation.

7.2 Third-Party Services

The Software may integrate with third-party services. Your use of such services is subject to their terms.

8. Warranties and Disclaimers

8.1 Limited Warranty

Licensor warrants that during your Subscription:

- The Software will perform materially as described in the Documentation
- Services will be provided with reasonable skill and care

8.2 Exclusions

The warranty does not cover issues caused by:

- Misuse or unauthorized modifications
- Third-party products or services
- Your equipment or network issues
- Force majeure events

8.3 Disclaimer

TO THE MAXIMUM EXTENT PERMITTED BY LAW:

THE SOFTWARE IS PROVIDED "AS IS" WITHOUT WARRANTIES OF ANY KIND. LICENSOR DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

LICENSOR DOES NOT WARRANT THAT THE SOFTWARE WILL BE ERROR-FREE, UNINTERRUPTED, OR SECURE.

9. Limitation of Liability

9.1 Exclusion of Damages

TO THE MAXIMUM EXTENT PERMITTED BY LAW, LICENSOR SHALL NOT BE LIABLE FOR:

- Indirect, incidental, special, or consequential damages
- Loss of profits, revenue, or business opportunities
- Loss or corruption of data
- Business interruption

9.2 Liability Cap

LICENSOR'S TOTAL LIABILITY SHALL NOT EXCEED THE FEES PAID BY YOU IN THE 12 MONTHS PRECEDING THE CLAIM, OR R100,000, WHICHEVER IS GREATER.

9.3 Exceptions

These limitations do not apply to:

- Gross negligence or willful misconduct
 - Death or personal injury caused by negligence
 - Fraud or fraudulent misrepresentation
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10. Indemnification

10.1 Your Indemnification

You agree to indemnify and hold Licensor harmless from claims arising from:

- Your use of the Software in violation of this Agreement
- Your data infringing third-party rights
- Your violation of applicable laws

10.2 Licensor Indemnification

Licensor will defend you against claims that the Software infringes third-party intellectual property rights, subject to conditions in our Master Services Agreement.

11. Term and Termination

11.1 Term

This Agreement is effective until terminated or your Subscription expires.

11.2 Termination by You

You may terminate by:

- Discontinuing use of the Software
- Cancelling your Subscription with 30 days' notice

11.3 Termination by Licensor

Licensor may terminate immediately if:

- You breach this Agreement
- Required by law
- You fail to pay fees when due

11.4 Effect of Termination

Upon termination:

- Your license rights cease immediately
 - You must stop using the Software
 - You may export your data for 90 days
 - Provisions that should survive will survive
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12. Export Compliance

You agree to comply with all applicable export control laws. You will not export or re-export the Software to prohibited destinations or persons.

13. Government Users

If you are a government entity, additional terms may apply. Contact us for government-specific licensing terms.

14. General Provisions

14.1 Entire Agreement

This Agreement constitutes the entire agreement regarding the Software and supersedes prior agreements.

14.2 Amendments

Licensor may amend this Agreement with 30 days' notice. Continued use constitutes acceptance.

14.3 Severability

If any provision is unenforceable, the remaining provisions continue in effect.

14.4 Waiver

Failure to enforce any provision does not waive that provision.

14.5 Assignment

You may not assign this Agreement without Licensor's consent.

14.6 Governing Law

This Agreement is governed by the laws of the Republic of South Africa.

14.7 Dispute Resolution

Disputes will be resolved according to the dispute resolution procedures in our Terms of Service.

15. Contact Information

Masaphokati Technologies (Pty) Ltd

Email: legal@siyabusa.com

Phone: +27 XX XXX XXXX

Address: [Physical Address], South Africa

16. Acceptance

BY CLICKING "I ACCEPT" OR BY ACCESSING OR USING THE SOFTWARE, YOU ACKNOWLEDGE THAT YOU HAVE READ THIS AGREEMENT, UNDERSTAND IT, AND AGREE TO BE BOUND BY ITS TERMS.

If you are accepting on behalf of an organization, you represent that you have authority to bind that organization.

Document Control

Version	Date	Changes
1.0	January 1, 2026	Initial release

SiyaBusa ERP - Powering African Business

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